

Calaveras Superior Court
Civil Law & Motion Calendar Tentative Rulings
Friday, July 2, 2021, Courtroom 2
Hon. David M. Sanders

9:00 AM	16CV41853 / 18PR8058	Demurrer Hearing	09/01/2016	07/23/2021	Motion Hearing;
				08/18/2021	Case Management Conference
XComp:	Shulz, Elizabeht		Atty:	Sternfeld, David I.	
XDefs:	Hyatt, Dylan P.		Atty:	Huber, Jonathan Paul	
Decedent:	Hughes, Jonathan				

TENTATIVE RULING: Cross-Defendant/Personal Representative Dylan P. Hyatt demurs, pursuant to Code of Civil Procedure section 430.10 (d), (e), and (f), to Elizabeth Schulz' Amended Cross-Complaint in both of these actions on the grounds that the cause of action set forth therein is based on misjoinder of parties, fails to state facts sufficient to state a cause of action, and is uncertain, ambiguous and unintelligible.

Defendant has not complied with Local Rule 3.3.7 enacted January 1, 2018, by failing to include the mandatory language in the notice of demurrer regarding the Court's tentative ruling system. Pursuant to said local rule, lack of compliance provides a specific ground to deny any such procedurally-deficient motion. Based solely upon defendant's failure to comply with Local Rule 3.3.7, the demurrer is OVERRULED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to all relevant statutes.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

9:00 AM	20CV45004	Plaintiff's Motion for Monetary Sanctions/Atty Fees for Def's FTA at Deposition; for Order Compelling Future Deposition	11/02/2020	07/21/2021	Case Management Conference
		Event Fee Required \$435.00 answer fee			
Ptff/Pet:	Giffin, Robin A		Atty:	Kruse Law Corporation	
Def/Res:	Vasconcellos, Steven Crane		Atty:	Pro Se	

TENTATIVE RULING: Plaintiff Robin A. Giffin moves, pursuant to Code of Civil Procedure sections 2023.010, et seq., 2025.450, and 2025.480, for monetary sanctions for Defendant Steven C. Vasconcellos' failure to appear at his duly noticed deposition and for an order compelling Defendants' deposition. Defendant has not filed any opposition.

Plaintiff served a proper amended notice of deposition concerning which defendant did not serve any objection and for which defendant did not appear. This nonappearance without any proper legal basis cause plaintiff to incur unnecessary expenses of time and money.

Good cause appearing, and no opposition having been filed, the motion is GRANTED. Defendant is ordered to appear for a deposition on a day and time of plaintiff's choosing during the week of July 19, 2021, at the offices of California Deposition Reporters (2453 Grand Canal Boulevard in Stockton). Sanctions are awarded in the total amount of \$1,029.00 (attorney's fees of \$600 [2 hours at \$300 per hour, i.e., the customary rate in this market], court reporter appearance fee of \$275, filing fee of \$60, and CourtCall fee of \$94).

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.